



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

February 7, 2025

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Will Rodriguez**
Tax Registry No. 964254
42 Precinct
Disciplinary Case No. 2023-28916

Police Officer Lauren Moriarty
Tax Registry No. 961964
42 Precinct
Disciplinary Case No. 2023-28917

The above named members of the service appeared before Assistant Deputy Commissioner Jeff S. Adler on May 28, 2024, and were charged with the following:

DISCIPLINARY CASE NO. 2023-28916

1. Said Police Officer Will Rodriguez, on or about March 6, 2022, while on duty and assigned to the 42 Precinct, wrongfully discharged his service firearm at a moving vehicle.

P.G. 221-03, Page 3, Paragraph 1(f)

FORCE GUIDELINES

DISCIPLINARY CASE NO. 2023-28917

1. Said Police Officer Lauren Moriarty, on or about March 6, 2022, while on duty and assigned to the 42 Precinct, wrongfully discharged her service firearm at a moving vehicle.

P.G. 221-03, Page 3, Paragraph 1(f)

FORCE GUIDELINES

In a Memorandum dated July 16, 2024, Assistant Deputy Commissioner Adler found Police Officer Will Rodriguez and Police Officer Lauren Moriarty Guilty of the charged misconduct in Disciplinary Cases No. 2023-28916 and 2023-28917, respectively. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues concerning the misconduct for which Police Officers Rodriguez and Moriarty were found Guilty, and deem that a greater penalty is warranted.

Therefore, Police Officer Rodriguez and Police Officer Moriarty shall each be suspended for thirty (30) days without pay, forfeit an additional sixty (60) vacation days, for a total of ninety (90) penalty days, and be placed on one-year Dismissal Probation.



Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

July 16, 2024

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In the Matter of the Charges and Specifications
- against -

Police Officer Will Rodriguez
Tax Registry No. 964254
42 Precinct

Case No.
2023-28916

Police Officer Lauren Moriarty
Tax Registry No. 961964
42 Precinct
----- X

Case No.
2023-28917

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Jamie Moran & Matthew McCarthy, Esqs.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For Respondents: Stuart London, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:
HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2023-28916

1. Police Officer Will Rodriguez, on or about March 6, 2022, while on duty and assigned to the 42 Precinct, wrongfully discharged his service firearm at a moving vehicle.

P.G. 221-03, Page 3, Paragraph 1(f)

FORCE GUIDELINES

Disciplinary Case No. 2023-28917

1. Police Officer Lauren Moriarty, on or about March 6, 2022, while on duty and assigned to the 42 Precinct, wrongfully discharged her service firearm at a moving vehicle.

P.G. 221-03, Page 3, Paragraph 1(f)

FORCE GUIDELINES

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on May 28, 2024. Respondents, through their counsel, each entered a plea of Not Guilty to the charged misconduct. The Department called Detective Jonathan Bradlin as a witness, and introduced into evidence video footage that captured the incident. Respondents called Detective Edward Murray and Police Officer John Batule as witnesses, and each testified on their own behalves. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find both Respondents Guilty, and recommend a penalty of 30 suspension days without pay, 30 vacation days, and one-year dismissal probation for each Respondent.

ANALYSIS

On the evening of March 6, 2022, several members of the 42 Precinct's Public Safety Team purchased food and were driving back to the command for meal. They all were in

uniform, in two separate unmarked police vehicles. Respondent Will Rodriguez was the operator of one RMP, with Officer John Batule in the front passenger seat and Respondent Lauren Moriarty in the rear seat. The second car was operated by Officer Edward Murray, with Officer Juan Peralta in the front passenger seat and Sergeant Danny Aguilar seated in the rear.

Detective Jonathan Bradlin of the Force Investigation Division provided a summary of what transpired that evening, based on his review of video evidence and interviews with witnesses. As the two police vehicles were proceeding southbound on Boston Road in the Bronx at approximately 2000 hours, a black Jeep Compass, with four occupants, was driving in the opposite direction. Based on observations of the reckless manner in which the Jeep was being operated, including crossing a double yellow line and running a red light, the two RMPs made U-turns and pursued the Jeep with the intention of making a traffic stop. The Jeep subsequently drove through a second red light. At the intersection of Boston Road and 165th Street, where the Jeep was stopped at a light, the officers attempted to pin the Jeep between the two police vehicles: the vehicle containing the Respondents activated its emergency lights and angled diagonally to the right in front of the Jeep, while the other RMP pulled up from behind. The operator of the Jeep backed into the second RMP, and then proceeded forward and to the left as he attempted to drive away, even though Rodriguez was standing directly in the Jeep's path. At that moment, each Respondent discharged their firearm at the moving vehicle: Rodriguez fired one shot, while Moriarty fired three rounds at the Jeep, which veered to the left and crashed into a wall. The driver of the Jeep, who was 18 years old, sustained one gunshot wound to his forehead; he was transported to the hospital where medical personnel indicated he was suffering from partial paralysis on his right side and a speech impediment.¹ An empty bottle of whiskey

¹ No evidence was provided as to the current medical condition of the driver. (Tr. 31)

and a full bottle of rum were recovered from inside the Jeep. Video footage taken from a nearby building provides an overhead view of the car stop and what ensued, which was consistent with the account provided by Bradlin. (Tr. 18-29, 36-39, 44-46; Dept. Ex. 2),

Respondent Rodriguez testified that he heard tires screech and observed the Jeep crossing over a yellow line and driving in the wrong direction as it turned onto Boston Road. The Jeep, which was traveling at a high rate of speed, then proceeded through a red light. Rodriguez made a U-turn and pursued the Jeep, as did the other RMP behind them. Although there was no radio call involving the Jeep, Respondent suspected it might be fleeing from a felony, based on the manner in which it was being driven. It also was an area known for gang activity. (Tr. 124-26, 145-51)

At the intersection of 165th Street and Boston Road, the Jeep came to a stop. Rodriguez passed on the Jeep's left and positioned his RMP at an angle in front of the Jeep. Rodriguez testified that based on training, his intention was to employ a "high-risk car stop" by pinning the Jeep between his RMP and the other police car, in order to prevent the Jeep from driving off and crashing into another vehicle or hitting a pedestrian. (Tr. 126-30, 157-58, 162-63)

As Rodriguez exited his vehicle, he heard a loud bang coming from the direction where the Jeep had backed into the second RMP. Rodriguez testified that he did not see the crash and did not know what caused the sound, but he immediately moved toward it. He heard the rev of an engine and observed the Jeep suddenly moving forward toward him. According to Rodriguez, it "unraveled so quickly, within a blink of an eye." With the "six thousand pound" Jeep coming at him, and a white sedan driving in their direction as well, Rodriguez believed he could not get out of the way, and feared he was about to be seriously injured or killed. He pulled his firearm with his left hand, and extended his right hand between the headlights of the oncoming Jeep to

push himself off of it. Rodriguez fired one shot because he “wanted to stop the threat of what was going to hit [him];” in that split second, Rodriguez did not believe he had any other option. He managed to move to the driver’s side of the Jeep and avoided being struck, as the vehicle drove past him and into a church wall. The moment when he discharged his firearm was also captured by Rodriguez’s Body-Worn Camera (“BWC”) footage, which showed the Jeep moving toward him as he fired the shot. (Dept. Ex. 3 at 0:56; Tr. 130-35, 163-68, 174-79)

After the Jeep crashed into the wall, Rodriguez rushed toward it. He approached the driver, whose foot was still on the gas pedal, and who was bleeding from his head. Rodriguez immediately called for medical assistance. He then opened the car door, pulled the driver’s foot off the gas, and removed him from the Jeep. In his BWC footage, Rodriguez can be heard saying “stay with me” as he takes the driver out of the Jeep and places him on the ground, where another MOS attempts to render medical aid. (Dept. Ex. 3 at 2:02; Tr. 135-37, 141)

Respondent Moriarty testified that when she exited her RMP following the vehicle stop, she heard a crash sound from the impact of the Jeep striking the other RMP. She positioned herself in front of the Jeep, and focused on the driver, whom she observed quickly cutting the steering wheel to the left. It appeared to Moriarty that the driver was attempting to flee, “and in doing so he was going to strike and kill or seriously hurt [her] partner, Officer Rodriguez, who was in front of that vehicle.” As seen in her BWC footage (Dept. Ex. 4 at 0:54), Moriarty discharged her firearm three times at the Jeep, aiming for the driver in order “to stop the threat.” The Jeep veered left into a church wall. Moriarty did not know whether it was a shot fired by her or Rodriguez that struck the driver. (Tr. 185-91, 199, 201-02)

Police Officer John Batule, who was in the front passenger seat of Respondents’ RMP, testified that he observed the Jeep being driven in a reckless manner, including proceeding in the

wrong lane of traffic, running a red light, and speeding. At the point of the car stop, Batule exited the RMP and approached the passenger side of the Jeep. He stated, "Let me see your hands," but the Jeep reversed into the other RMP. Batule struck the passenger window of the Jeep with his asp, and observed the operator of the Jeep, who looked "frantic," aggressively turning the steering wheel to the left. The officer heard the Jeep's engine rev, signaling that the operator had hit the gas pretty hard, and the Jeep took off. Batule heard gunshots, but did not see where Rodriguez or Moriarty were standing prior to the shots being fired. (Tr. 60-65, 69-77, 86)

Detective Edward Murray testified that on the date of the incident he was a police officer operating the second RMP. He, too, observed the Jeep driving in the wrong lane of traffic and passing a red light. At the intersection of 165th Street and Boston Road, he pulled his RMP behind the Jeep, attempting to pin it in. The Jeep instead reversed and crashed into his RMP, jolting the officers inside the vehicle. Murray exited the RMP and observed Rodriguez and Moriarty in the center of the road. The Jeep accelerated to the left, toward Rodriguez. Murray heard three to four gunshots, and saw the Jeep crash into a building. (Tr. 89-95, 102, 111-17)

After carefully listening to the witnesses, in conjunction with the video evidence, I credit the testimony of Respondents, and that of their colleagues, that they observed the Jeep being driven in a reckless manner and attempted a high-risk car stop based on their training. Once Respondents exited their RMP, the operator of the Jeep, in an attempt to flee, angled the steering wheel to the left and accelerated forward, in the direction where Rodriguez was standing. Respondents both discharged their firearms at the Jeep, leading to the charges in this case.

It is alleged that both Respondents committed misconduct by wrongfully discharging their firearms at the moving vehicle. Section 221-01(1)(f) of the Patrol Guide states that uniformed members of the service "shall not discharge their firearms at or from a moving vehicle

unless deadly physical force is being used against the member of the service or another person present, by means other than a moving vehicle.” The rule is grounded in important safety concerns. A car that is fired upon may strike innocent bystanders if the driver loses control. A moving vehicle presents a difficult target, increasing the likelihood that the driver or other vehicle occupants may be struck by the gunfire, which is what happened here.

In this matter, it is undisputed that both Respondents discharged their weapons at the moving Jeep: Rodriguez fired one shot, while Moriarty fired three. As a result, the driver of the Jeep was struck one time in the head, causing serious physical injury. Respondents each explained that the reason they fired their weapons was because they feared that the Jeep was about to strike Rodriguez, and the video footage, which showed the Jeep driving toward Rodriguez, supported their concern. However, the Patrol Guide explicitly states that a firearm discharge is only justified if deadly physical force is being used *through means other than the vehicle itself*. Here, the only force came from the operation of the Jeep; there was no use of deadly physical force from any other source. This was not, for instance, a case where an occupant of the Jeep was shooting a gun at somebody. This also was not a vehicle ramming attack, the type of extraordinary event that might justify Respondents’ actions.

As such, the credible evidence has established that Respondents wrongfully discharged their firearms at a moving vehicle. Accordingly, I find both Respondents Guilty.

PENALTY

In order to determine appropriate penalties, this tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondents’

employment histories also were examined. *See* 38 RCNY § 15-07. Information from their personnel records that was considered in making this penalty recommendation is contained in attached memoranda. Neither Respondent has any formal disciplinary history. Respondent Rodriguez has been awarded two medals for Meritorious Police Duty and seven for Excellent Police Duty, while Respondent Moriarty has been awarded six medals for Excellent Police Duty.

Respondent Moriarty and Respondent Rodriguez, who were appointed to the Department on July 13, 2016 and July 5, 2017, respectively, each have been found guilty of wrongfully discharging their firearm at a moving vehicle. As a result of their actions, the driver of the vehicle sustained serious physical injury, and there must be appropriate accountability. The Department Advocate's Office recommends a penalty of Forced Separation from the Department for each Respondent, while defense counsel asks for a lesser penalty.

The Disciplinary Guidelines include a specific category for situations in which an officer wrongfully discharges their firearm at a moving vehicle, where the firing of the weapon does *not* result in serious physical injury. The presumptive penalty for such offense is 20 penalty days, with an aggravated penalty of 30 days and dismissal probation. There is, however, no specific penalty provided in situations where the discharge of the firearm results in serious physical injury. The absence of a prescribed category suggests the need for flexibility in such situations, that not all such cases warrant separation, and that each matter should be evaluated individually in order to determine an appropriate penalty.

For instance, in a particularly egregious scenario, where the discharge of the firearm is prompted solely by frustration with an uncooperative motorist, a more serious penalty such as separation might be warranted. Similarly, in situations where the firearm is discharged at a

vehicle that is driving away, where there is no imminent threat to the safety of an officer or bystander at the time the shots are fired, a higher penalty might also be appropriate.

Here, however, the surrounding circumstances that existed at the moment Respondents discharged their firearms do not warrant separation from the Department. I credit Respondents' testimony, supported by the video evidence, that they each perceived a *specific, immediate threat* to the life of Respondent Rodriguez, who was in the path of the accelerating vehicle at the moment they fired their weapons. In discharging their firearms, they were attempting to terminate that threat instantly.

Under these specific circumstances, the actions of Respondents, neither of whom has any formal disciplinary history, and each of whom has been awarded multiple medals, should not end their careers with the Department. On balance, a penalty that includes a significant forfeiture of days, along with monitoring, is appropriate to address the misconduct in this case. Taking into account the totality of the facts and issues in this matter, I recommend that each Respondent be suspended for thirty (30) days without pay, forfeit an additional thirty (30) vacation days, and that each Respondent be DISMISSED from the New York City Police Department, but that their dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time they remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

DISAPPROVED

FEB 07 2025

**JESSICA S. TISCH
POLICE COMMISSIONER**

Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER WILL RODRIGUEZ
TAX REGISTRY NO. 964254
DISCIPLINARY CASE NO. 2023-28916

Respondent was appointed to the Department on July 5, 2017. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2021, 2022, and 2023. Respondent has been awarded two medals for Meritorious Police Duty and seven medals for Excellent Police Duty.

Respondent has no formal disciplinary history. In connection with the instant matter, he was placed on Level 1 Discipline Monitoring in February 2024; monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER LAUREN MORIARTY
TAX REGISTRY NO. 961964
DISCIPLINARY CASE NO. 2023-28917

Respondent was appointed to the Department on July 13, 2016. On her three most recent annual performance evaluations, she was rated “Exceptional” for 2021, 2022, and 2023. Respondent has been awarded six medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration

Jeff S. Adler
Assistant Deputy Commissioner Trials